

The creation and application of laws pertaining to the internet have met with many problems and led to much debate. The most common issue related to maintaining these laws are the geographical diversity of internet users. While what may not be illegal here may be a severe crime in another country, or vice versa. From this diversity also comes the problem of prosecution in other countries. While some countries are willing to work together to maintain a certain standard, not all countries are willing to cooperate.

There have been instances where an identity has been stolen, or the contents of a bank account have been emptied into a hacker's account, but because the perpetrator was not in the country from which the money was stolen, and the country that the perpetrator was in will not cooperate, the perpetrator was not prosecuted. In some countries, child porn is not illegal, and is available on servers located in those countries. While it is illegal to have child porn in the United States, if such countries make it readily available, people will still have means to obtain such material.

While these can be blocked, doing so would cause more problems, including debate on what should be blocked, why it should be blocked, and how it should be blocked. Why something should be considered illegal is another common issue. A very common topic is virtual child porn, or porn in which no real children appear, but virtual children engage in sexual activities. When brought before the court, people stated that by making it illegal, the government was obstructing their freedom of speech. The argument has been brought up in multiple court cases related to other topics that have been stated to be illegal, such as racism or anti government sites.